

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 14, 2026
8:30 a.m./1:30 p.m.

6. DCSS V. BRIAN ORTEGA (OTHER PARENT: REBECCA GIERHART) PFS20160102

On February 19, 2026, Other Parent filed a Request for Order seeking visitation orders and attorney's fees. She filed her Income and Expense Declaration concurrently therewith. All required documents were electronically served on February 23rd.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on May 1st.

Other Parent filed Mother's Reply Declaration to Responsive Declaration on May 5th, it was served on May 6th.

Other Parent is requesting an order allowing the children to attend the annual family camping trip from July 13, 2026, through July 20, 2026, and Respondent to receive his two hours of missed parenting time as make up time prior to July 13th. She further requests attorney's fees in the amount of \$3,000.

After reviewing the filings as outlined above, the court does find it to be in the best interests of the children to attend the annual camping trip. Other Parent is hereby authorized to take the children on the annual family camping trip from July 13, 2026, through July 20, 2026. Other Parent is ordered to provide Respondent with travel itinerary as soon as she has it including, but not limited to, lodging location and contact information.

Respondent shall be allowed two hours of make-up time to account for the visit he will miss with the children while they are camping. The parties are to meet and confer to select dates and times for Respondent to make up his two hours of parenting time before July 13, 2026.

Regarding the request for sanctions, it appears the request is being made pursuant to Family Code section 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a). While the purpose of Section 271 is to impose a punitive sanction, the court is not to impose a sanction that would create an "unreasonable financial burden on the party against whom the sanction is imposed." *Id.*

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Here, it does appear that Respondent's blanket refusal to allow the children to attend the camping trip may have frustrated the policy of the law, to promote settlement, the court is concerned that the imposition of sanctions, especially in the amount of \$3,000, would create an unreasonable financial burden on Respondent. Accordingly, the request for sanctions is denied. Respondent is admonished that continued failure to engage in cooperative coparenting may result in monetary sanctions in the future.

Other Parent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: OTHER PARENT IS AUTHORIZED TO TAKE THE CHILDREN ON THE ANNUAL FAMILY CAMPING TRIP FROM JULY 13, 2026 THROUGH JULY 20, 2026. OTHER PARENT IS ORDERED TO PROVIDE RESPONDENT WITH TRAVEL ITINERARY AS SOON AS SHE HAS IT INCLUDING, BUT NOT LIMITED TO, LODGING LOCATION AND CONTACT INFORMATION.

RESPONDENT SHALL BE ALLOWED TWO HOURS OF MAKE-UP TIME TO ACCOUNT FOR THE VISIT HE WILL MISS WITH THE CHILDREN WHILE THEY ARE CAMPING. THE PARTIES ARE TO MEET AND CONFER TO SELECT DATES AND TIMES FOR RESPONDENT TO MAKE UP HIS TWO HOURS OF PARENTING TIME BEFORE JULY 13, 2026.

THE REQUEST FOR SANCTIONS IS DENIED. RESPONDENT IS ADMONISHED THAT CONTINUED FAILURE TO ENGAGE IN COOPERATIVE COPARENTING MAY RESULT IN MONETARY SANCTIONS IN THE FUTURE.

OTHER PARENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**